

**Before the
Federal Communications Commission
Washington, D.C. 20554**

In the Matter of	)	
	)	
Facilitating Implementation of Next	)	PS Docket No. 21-479
Generation 911 Services (NG911)	)	
	)	
Massachusetts State 911 Department	)	PS Docket No. 25-143
Request of April 4, 2025	)	

**COMMENTS OF
USTELECOM – THE BROADBAND ASSOCIATION**

USTelecom – The Broadband Association (“USTelecom”)¹ submits these comments in response to the Federal Communications Commission’s (“FCC” or “Commission”) *Public Notice* (“*Notice*”)² on Verizon’s Petition for Waiver in the above-referenced dockets.³ For the reasons set forth below, USTelecom supports Verizon’s Petition.

In the Commission’s 2023 NG911 rulemaking, parties cautioned that NG911 implementation would be a complex endeavor.⁴ For Phase 1 and Phase 2, each originating service provider (“OSP”) will require a different flavor of SIP connectivity for as many as 5-6 different Next Generation Core Service (“NGCS”) vendors. Each NGCS vendor, in turn, must establish multiple reliable connections to several OSP networks—legacy wireline ILECs and

¹ USTelecom is the premier trade association representing service providers and suppliers for the communications industry. USTelecom members provide a full array of services, including broadband, voice, data, and video over wireline and wireless networks. Its broad membership ranges from international publicly traded corporations to local and regional companies and cooperatives, serving consumers and businesses across the country.

² *Public Safety & Homeland Sec. Bureau Seeks Comment on Verizon Petition for Waiver of Next Generation 911 (NG911) Phase 1 Deadlines*, Public Notice, DA 26-407, PS Docket Nos. 21-479, 25-143 (rel. Apr. 24, 2026).

³ Verizon, Petition for Waiver, PS Docket No. 21-479 (filed April 17, 2026) (“Petition”).

⁴ See, e.g., Comments of Intrado, PS Docket No. 21-479, at 5 (describing divergent ESInet requirements, including differences in security, data delivery, and location query protocols); Comments of the Industry Council for Emergency Response Technologies (iCERT), PS Docket No. 21-479, at 4 (explaining that NG911 standards “evolve” and require reliance on “commonly accepted standards” rather than fixed approaches).

CLECs, wireline VoIP providers, and 3-4 wireless providers—in a given geographic area. And different NG911 governance structures—ranging from statewide to regional, county- and even municipal-level governance—can present additional complications. Given this ecosystem, even in the best of circumstances establishing initial SIP connectivity between different networks is a time-consuming process of planning, testing, troubleshooting and remediation. For 911 call delivery in particular, extensive testing and troubleshooting is critical to ensure service reliability and call quality.

Given these realities, in response to the Commission’s 2023 NG911 NPRM,⁵ USTelecom noted that “[w]hile the six-month compliance timeline proposed in the Notice may be adequate in some cases, specifically where much of the transition work has already been completed, it is unlikely to be realistic in most cases.”⁶ This cautionary note is borne out by the several dozen mutual extension agreements reported in PS Docket 25-145 since the rules became effective. These agreements cover wireless, wireline ILEC, and wireline VoIP providers alike, and 911 Authorities coast-to-coast.

In its 2024 NG911 Order, the Commission reasoned that 911 Authorities’ flexibility would resolve the tension between its aggressive six-month default implementation period of the rules and the realities of SIP 911 connectivity. Recognizing that “‘first-time’ transition[s] by OSPs ... may take longer as OSPs connect with ESInets and NG911 service providers for the first time,” the Commission found that “the rules provide ample flexibility for OSPs and 911 Authorities to address these issues” and “encourage[d] 911 Authorities to collaborate with OSPs

⁵ *Facilitating Implementation of Next Generation 911 Services (NG911)*, PS Docket No. 21-479, Notice of Proposed Rulemaking, 38 FCC Rcd 6204 (2023) (“NG911 NPRM” or “Notice”).

⁶ Reply Comments of USTelecom, PS Docket No. 21-479, at 6 (filed Sept. 8, 2023).

that are connecting to ESInets and NG911 vendors in the first instance.”⁷ Such collaboration will be critical as 911 Authorities and OSPs begin more complex Phase 2 deployment efforts in the near future.

Notably, the dozens of mutual agreements in place also signal the benefit and success of stakeholder collaboration and flexibility by 911 Authorities. After all, every mutual agreement reported in PS Docket No. 25-145 represents another waiver request that the Bureau did *not* need to adjudicate and that did *not* distract NG911 stakeholders from their deployment efforts. But while the rules accommodate collaboration, standing alone they leave even the most diligent OSP dependent on the 911 Authority’s consent or, barring that, waiver relief from the Commission.

Verizon’s Petition describes the very “first time transition” challenges identified in the 2024 NG911 Order that underscore the need for flexibility by 911 Authorities. It describes the actions the Commission would expect of an OSP in these circumstances—i.e., coordination with 911 Authorities and vendors, troubleshooting and remediation of issues revealed in testing, and a path forward to compliance. It is especially notable that the testing revealed an issue with implications for OSPs and 911 Authorities beyond Verizon and Massachusetts, for future Phase 1 and Phase 2 deployments across industry, and for the Commission’s RAY BAUM’S Act rules for MLTS users.

For these reasons and others, the Commission should ensure that its consideration of this and future waiver requests (1) accounts for OSPs’ good faith implementation efforts, (2) does not penalize OSPs that encounter, and diligently remediate, the inevitable technical challenges that will occur with a task as complex as NG911 deployment, and (3) signals that collaboration in

⁷ *Facilitating Implementation of Next Generation 911 Services (NG911)*, PS Docket No. 21-479, Report and Order, 39 FCC Rcd 8137, ¶ 127 (2024) (“NG911 Order”).

these circumstances is the Commission's default expectation for all stakeholders—911 Authorities, NGCS vendors and OSPs alike. The Commission should apply those standards in granting Verizon's Petition.

Respectfully submitted,

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